

Tentative Rulings for August 27, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2607420	CORTES VS FCA US LLC	PLAINTIFF'S DEMURRER TO ANSWER

Tentative Ruling: Demurrer to Answer is overruled.

This is a lemon law case. Plaintiff, Kristopher Cortes, alleges that on 6/5/25, he acquired a new 2025 Ram 1500, which was accompanied by express and implied warranties. The vehicle was delivered with serious defects and nonconformities to warranty as to the electrical system, which impairs the use, value, and/or safety of the vehicle. Plaintiff alleges he presented the vehicle to Defendant, FCA US, LLC's (FCA) authorized service and repair facilities but, they were unable to conform the vehicle after a reasonable number of repair attempts. Plaintiff filed his Complaint on 4/14/26 alleging three causes of action: 1) breach of express warranty under the Song Beverly Consumer Warranty Act (SBA); 2) breach of implied warranty under the SBA; and 3) violation of the Civil Code § 1793.2(b).

FCA filed its Answer on 7/10/26 generally denying the allegations and asserting twenty-six affirmative defenses (AD).

Plaintiff, Kristopher Cortes, brings this demurrer to FCA's Answer arguing that the 4th AD for contributory negligence has been abrogated; that the 23rd AD is not legally cognizable; the 3rd, 5th through 20th, and 22nd through 25th Ads fail to state facts sufficient to constitute a defense and are uncertain (CCP §§ 430.20(a),(b), 430.30(b)); that the 2nd and 21st ADs violate CCP § 458 or are otherwise barred; and that the 26th AD is improper and uncertain.

Defendant, FCA, opposes the demurrer arguing that the Complaint is a bare-bones pleading but, Plaintiff demands facts be alleged to support each of FCA's defenses; and that in comparing the two pleadings demonstrates the defenses are sufficient to put Plaintiff on notice.

CCP §430.20(a), and (b) provide for a demurrer to an answer based on the failure to state sufficient facts to constitute a defense, and uncertainty. CCP §430.50(b) provides that a demurrer to an answer may be taken to the whole answer or to any one or more of the defenses set forth in the answer.

"A statement of any new matter constitutes a defense." (CCP § 431.30(b)(2).) This "new matter" is different than a simple denial of the allegations in the complaint. Rather, it is "some independent reason why plaintiff should be barred from recovery, even if everything alleged in the complaint was true." (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 6:430.)

In this case, Plaintiff asserts that certain of Defendant's affirmative defenses fail to allege sufficient facts to constitute a defense and/or are uncertain. As to the subject affirmative defenses, Plaintiff asserts that no supporting facts have been alleged; and that the alleged defenses are invalid in the context of this lawsuit. Defendant disagrees.

In *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367. This case did not deal with a demurrer to an answer, but was an appeal from the granting of summary

judgment in favor of plaintiff. *FPI Development* reminds the Court of the purpose, historically, of demurring to an answer: A plaintiff moving for summary judgment had to disprove defendant's affirmative defenses, so plaintiff made sure, by way of demurrer, that those affirmative defenses were pled in very fact-specific allegations. The summary judgment statute, however, was amended in 1992, eliminating this requirement. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 565.) Now that the defendant, and not the plaintiff, has the burden on summary judgment with regard to defendant's affirmative defenses, a demurrer to an answer no longer accomplishes anything.

Here, Plaintiff asserts that certain of the subject affirmative defenses fail to state sufficient facts, are uncertain, improper or invalid in this SBA action. It is accurate that the subject affirmative defenses themselves are conclusory but, so are the allegations in the Complaint. Plaintiff takes issue with the lack of facts that are alleged but, a demurrer only addresses the face of the pleading. Whether there are alleged facts or not, the merits of the affirmative defenses are not before the court on this motion.

More importantly, a pleading need only give fair notice of the issues involved. (Weil & Brown, *supra.* at § 6:128, citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376.) Here, Defendant's Answer gives Plaintiff fair notice of the affirmative defenses asserted. If Plaintiff wants further clarification of the affirmative defenses, she can propound Form Interrogatory No. 15.1, which would require Defendant to state all facts upon which it bases its affirmative defenses. Thus, the challenged affirmative defenses (AD) are sufficiently alleged for purposes of surviving a demurrer.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2201046	BROWN VS RIVERSIDE COUNTY SHERIFF	MOTION TO COMPEL ATTENDANCE AT DEPOSITION OF PLAINTIFF MAYLETTE BROWN

Tentative Ruling: Unopposed motion to compel Attendance of Plaintiff Maylette Brown at deposition and to produce documents is Granted. Plaintiff is ordered to appear for deposition within 10 days of the date of this order and produce documents 5 days prior to the date of the deposition. Sanctions awarded to moving party in the amount of \$2,961.00.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2201046	BROWN VS RIVERSIDE COUNTY SHERIFF	MOTION TO COMPEL ATTENDANCE AT DEPOSITION OF PLAINTIFF JASMAINE GRABEN

Tentative Ruling: Unopposed motion to compel Attendance of Plaintiff Jasmine Graben at deposition and to produce documents is Granted. Plaintiff is ordered to appear for deposition within 10 days of the date of this order and produce documents 5 days prior to the date of the deposition. Sanctions awarded to moving party in the amount of \$2,461.00.

4.

CASE #	CASE NAME	HEARING NAME
CVSW2403347	ESTRADA VS ADAME	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON THE 3 RD AMENDED COMPLAINT

Tentative Ruling: Request for Continuance is Denied. Motion for Summary Judgment is Granted.

On March 30, 2023, at 6:30 p.m., Plaintiff Griselda Estrada was driving eastbound on Domenigoni Parkway in Winchester with her daughter, Plaintiff Jahzlyn Estrada (minor) as her passenger. While allegedly facing a green arrow left turn traffic light at the intersection, Plaintiffs began executing a left turn onto Prairie Loop Road. At that time, Plaintiffs allege that a vehicle belonging to and/or operated by Defendant Marcus Adame, an employee for the County of Riverside Sheriff's Department, failed to observe the traffic signal at the Intersection and struck the passenger side of Plaintiffs' vehicle causing them personal injuries. Plaintiffs further allege that the site of the accident was a dangerous condition of public property.

On March 28, 2024, Plaintiffs filed this action. After challenges to the pleadings, on March 25, 2026, Plaintiffs filed their operative Third Amended Complaint ("TAC") for: (1) motor vehicle negligence; (2) general negligence; (3) violation of Government Code § 840.2; (4) violation of Government Code § 835; (5) products liability (against Does); and (6) violation of Government Code § 815.6. Trial is set for January 22, 2027.

Defendant Riverside County Transportation Commission ("RCTC") now moves for summary judgment. (C.C.P., § 437c.) RCTC argues it did not own or control the subject intersection and as such cannot be held liable for any dangerous condition thereon. It argues Defendant County of Riverside ("County") has stated that it owned and/or controlled the intersection. RCTC also argues the 2nd cause of action does not include a statutory basis; the 3rd cause of action fails because no RCTC employee was present at the accident; the 4th and 6th causes of action fails due to the lack of ownership and/or control; and additionally, the 6th cause of action fails as Vehicle Code §§ 21400 and 21401 only applies to the State of California.

In opposition, Plaintiffs open by requesting a continuance arguing discovery is ongoing, and Plaintiffs' counsel requires person most knowledgeable ("PMK") depositions of Defendants. They state the County is a member of the RCTC, and 5 members of its board are County supervisors and that RCTC owns property all over Riverside County for various projects including the State Route 79 which is a nearby cross street of the intersection. They also disclose that counsel has recently learned of a fatal collision at the same intersection after Plaintiffs' collision, which requires inquiry. Plaintiffs argue the declaration relied on is speculative and lacks foundation. They also argue County's discovery responses are qualified as they state discovery is ongoing and merely state it has "jurisdiction" of the intersection which is unclear.

RCTC replies arguing Plaintiffs failed to meet their burden to obtain a continuance. It argues there is no triable issue of material fact that RCTC and Plaintiffs failed to produce any evidence on this issue. County's discovery responses stating they own the

intersection are controlling. RCTC argues Plaintiffs fail to address the remainder of the arguments and thus have forfeited any arguments in opposition thereto. It also submits evidentiary objections.

Procedural Issue - In its notice of motion, RCTC states it moves for “summary judgment, or in the alternative, summary adjudication, on the entire Third Amended Complaint (“TAC”)” on the grounds “that each cause of action in the TAC has no merit, that there is no triable issue as to any material fact as to RCTC, and that RCTC is entitled to judgment as a matter of law.” (Ntc. of Mtn., p. 2.) However, where summary adjudication is sought, the notice must specify the “specific cause of action, affirmative defense, claims for damages, or issues of duty” sought to be adjudicated. (Cal. Rules of Court, rule 3.1350(b).) However, “the court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory.” (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.) While the notice is not technically compliant as it fails to identify each specific cause of action, Plaintiffs did not raise this issue. Moreover, the separate statement adequately identifies each challenged cause of action. (Cal. Rules of Court, rule 3.1350(d).) The Court will reach the merits on this motion.

Standard - A motion for summary judgment or summary adjudication shall be granted when no triable issue of material fact exists or the issue is one of law and the action can be terminated in favor of the moving party without the necessity of trial. (C.C.P., § 437c; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant has met his or her burden under C.C.P., § 437c(p)(2) of showing a cause of action has no merit if that party has shown that one or more of the elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once that burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material fact exists. (C.C.P., § 437c(p)(2); *Arcienaga v. Bank of San Bernardino* (1997) 52 Cal.App.4th 213, 231.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (C.C.P., § 437c(p)(2).) Once the defendant has met that burden, “the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (*Id.*) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Merits - As to each of the challenged causes of action against it 2nd, 3rd, 4th and 6th, RCTC meets its burden.

Second Cause of Action (General Negligence): Plaintiffs cannot demonstrate a statutory basis for general negligence liability against RCTC. Government tort liability in California is entirely statutory. (Gov. Code, § 815.) The Government Claims Act eliminated all common law governmental liability. (*Thompson v. City of Lake Elsinore* (1993) 18 Cal.App.4th 49, 62.) Plaintiffs have not identified any statute imposing liability

on RCTC for general negligence absent ownership or control of the property where the injury occurred.

Third Cause of Action (Government Code Section 840.2): Section 840.2 imposes liability on a public employee for injury caused by the employee's act or omission. RCTC also submits evidence that Defendant Adame was not an employee of it nor did RCTC own the vehicle he was driving. (UMF Nos. 23, 47, 71, 95, 119-120.) This cause of action fails.

Fourth Cause of Action (Government Code Section 835 - Dangerous Condition): Section 835 requires that the dangerous property belong to the public entity. Government Code section 835 states:

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

For purposes of section 835, property of a public entity means real or personal property "owned or controlled by the public entity." (Gov. Code, § 830, subd. (c).) "A public entity may not be held liable under section 835 for a dangerous condition of property that it does not own or control." (*Goddard v. Dept. of Fish & Wildlife* (2015) 243 Cal.App.4th 350, 359, citing *Aaitui v. Grande Properties* (1994) 29 Cal.App.4th 1369, 1373–1377 and *Chatman v. Alameda County Flood Control etc. Dist.* (1986) 183 Cal.App.3d 424, 430–431.) "[C]ontrol exists if the public entity has the 'power to prevent, remedy or guard against the dangerous condition.'" (*Huffman v. City of Poway* (2000) 84 Cal.App.4th 975, 990.)

In support of its motion, RCTC presents evidence that it did not own, control or maintain the intersection by way of the declaration of Lisa Mobley, Clerk for the Board of the RCTC. (UMF Nos. 12–16, 36–40, 60–64, 84–88, 108–112.) RCTC also submits evidence that County responded to written discovery admitting it owned and maintained the intersection and traffic signal lights and the intersection was subject to County's jurisdiction. (UMF Nos. 8-11, 17-22, 32-35, 41-46, 56-59, 65-70, 80-83, 89-94, 104-107, 113-118.) County has therefore met its initial burden to show that it cannot be held liable for a dangerous condition of public property pursuant to Government Code § 835 et seq. because it does not own, control, or maintain the subject intersection.

Sixth Cause of Action (Government Code Section 815.6 / Vehicle Code Sections 21400-21401): This cause of action alleges RCTC failed to perform a mandatory duty imposed by Vehicle Code sections 21400 and 21401 regarding the installation and

maintenance of traffic control devices. Without ownership or control of the intersection, RCTC had no duty or authority to install, maintain, or control traffic signals at the intersection. Moreover, RCTC presents evidence that County owned and controlled the intersection and the traffic signals.

The burden shifts to Plaintiffs to show that a triable issue of material fact exists. In opposition, Plaintiffs request the Court grant them a continuance to conduct discovery. As discussed further below, the Plaintiff has failed to make the requisite showing. Plaintiffs also assert, absent any authority or evidence that RCTC and County are in a relationship such that any liability placed upon County from this matter is shared by RCTC and/or that RCTC's ownership of unspecified property in connection with a project on State Route 79 nearby is sufficient. However, Plaintiffs do not present any evidence regarding RCTC's alleged ownership or control of the subject intersection at the time of the accident. As Plaintiffs have not presented any admissible evidence which would create a triable issue of material fact with regard to RCTC's ownership or control of the subject intersection and/or traffic signals.

RCTC's Objections in Reply - RCTC objects to the declaration of attorney Robyn Mallon and the separate statement in opposition. The Court declines to rule on the evidentiary objections submitted by RCTC as they are not outcome determinative.¹ In granting or denying the motion, the court "need rule only on those objections to evidence that it deems material to its disposition." (C.C.P., § 437c(q).)

Plaintiffs Request for Continuance (C.C.P., § 437c(h)) - If the opposing party shows by declaration that essential evidence "may exist but cannot, for reasons stated, be presented, the court shall deny the motion" or continue it for a reasonable period, or "make any other order as may be just." (C.C.P., § 437c(h); see *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.) Thus, a continuance (normally a matter within the court's discretion) is "*virtually mandated*" where the nonmoving party makes the requisite showing. The party need not show that essential evidence *does* exist, but only that it may exist. (*Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 34 [emphasis added; internal quotes omitted]; *Frazee v. Seely* (2002) 95 Cal.App.4th 627, 634; *Fadeeff v. State Farm Gen. Ins. Co.* (2020) 50 Cal.App.5th 94, 103-104 [quoting text].)

The statute requires that the opposition be accompanied by affidavits or declarations showing facts to justify opposition may exist; or that such showing be made by an ex parte motion on or before the date the opposition is due. (See C.C.P., § 437c(h); *Combs v. Skyriver Communications, Inc.* (2008) 159 Cal.App.4th 1242, 1270.) The opposing party's declaration in support of a motion to continue the hearing should show the following:

- Facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion;

¹ Even if all objections are overruled, the Mallon Declaration would not create a triable issue of material fact. The declaration does not controvert RCTC's evidence that it did not own or control the Intersection, nor does it controvert the County's verified admissions that the County owned, controlled, and maintained the Intersection. Speculation about undisclosed relationships, proximity to other RCTC projects, or the composition of RCTC's board does not create a triable issue regarding ownership or control of the specific property at issue.

- The specific reasons why such evidence cannot be presented at the present time;
- An estimate of the time necessary to obtain such evidence; and
- The specific steps or procedures the opposing party intends to utilize to obtain such evidence. (C.C.P., § 437c(h); see *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420 [declaration that “additional information and testimony” required to “adequately respond to Defendant’s Motion” insufficient]; *Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254 [merely stating “further discovery or investigation is contemplated” not sufficient]; *Johnson v. Alameda County Med. Ctr.* (2012) 205 Cal.App.4th 521, 532 [citing text - declaration stating “discovery is reasonably necessary to determine who” may be responsible for injury “insufficient to support a continuance”].)

Here, Plaintiffs submit the declaration of Robyn J. Mallon supporting the continuance. Mallon declares she is one of Plaintiffs’ attorneys, Plaintiffs have propounded a first set of written discovery and have noticed the Person Most Knowledgeable (“PMK”) deposition for County and RCTC and she intends to ask County’s PMK about the meaning of the term “jurisdiction” used in their response to Plaintiffs’ Special Interrogatories as well as determine the relationship between them and RCTC and who had responsibility for setting a high speed limit in a residential area off of Domenigoni Parkway. (Ballon Decl., ¶¶ 1, 8.)

The declaration does not establish a likelihood that controverting evidence exists. Plaintiffs seek discovery to explore whether there is evidence to support their theories that RCTC and the County have an undisclosed relationship, that there is joint ownership or control, or that RCTC contributed to the Intersection’s design or funding. This is speculative. The declaration does not identify specific facts suggesting such evidence exists; it merely expresses hope that depositions might reveal something helpful.

Moreover, the discovery Plaintiffs seek would not necessarily create a triable issue of material fact. Even if Plaintiffs obtained testimony about the composition of RCTC’s board or about RCTC’s State Route 79 project, this would not establish that RCTC owned or controlled the Intersection at the time of the accident. The County has admitted it owned, controlled, and maintained the Intersection. RCTC has declared it did not. Plaintiffs have not identified what specific facts PMK depositions would uncover that would contradict this evidence. Notably absent from the Ballon declaration are any facts regarding the specific reasons why such evidence cannot be presented at the present time and an estimate of the time necessary to obtain such evidence.

The declaration also does not demonstrate diligence. (*Braganza v. Albertson’s LLC* (2021) 67 CA5th 144, 151-157 [acknowledging there is a split of authority whether the court has discretion to deny a continuance based on the party’s lack of diligence in discovering facts earlier and concluding that the party seeking continuance must show why discovery needed to oppose motion could not have been completed sooner, and moving party not required to show it would be prejudiced by continuance].) This action was filed on March 28, 2024, and the Third Amended Complaint was filed on March 25, 2026, and trial is set for January 2027. Plaintiffs propounded unspecified written discovery an unspecified time but have not explained why they did not seek the information they now claim is essential earlier in the litigation. Plaintiffs have not

explained why the questions they now seek answers to were not asked in the already propounded discovery, if any.